

- Q. An ethical hacker signs a contract with vague scope language ("test the network") and later exploits a cloud-based third party services integrated with the client's systems. The third party threatens legal actions. Analyze where liability may fall and how proper scoping and legal documentation could have prevented this.

* Liability in the Given Scenario :-

Ethical hacking is the process of legally testing the security of computer systems with the owner's permission. Ethical hacker must always work within the limits defined by a written agreement. In this case, the ethical hacker signed a contract that only stated "test the network" without clearly defining what systems were included. During testing, the hacker exploited a cloud-based third-party service was not explicitly authorized, legal issues arise.

* Analysis of Liability :-

(i) Ethical Hacker:

- The ethical hacker may be held responsible because they accessed a third party system without explicit authorization.
- This may be considered unauthorized access under cybersecurity laws.

cii) Client Organization:

- The client may also share responsibility if they failed to clearly define the scope of the Penetration test.
- By using vague wording such as "test the network" they created confusion about which assets were authorized for testing.

Liij) Third-Party Service Provider:

- The third party has the legal right to object because it's systems without consent.
- Since no agreement existed between the ethical hacker and the cloud service provider

* How Proper Scoping could prevent this:

A clear contract should include:

- 1, systems and applications that are in scope and out of scope
- 2, Written permission for testing third-party or cloud services
- 3, Testing methods, time limits and objectives
- 4, Rules of Engagement (RoE) and a statement of work (SOW).

* Role of Legal Documentation:

Documents such as an Authorization Letter, NDA, Rules of Engagement, and Statement of Work clearly define permissions and responsibilities. These documents protect both the ethical hacker and the client from legal disputes.

* Responsible Disclosure:

If a vulnerability is found in a third-party service, the ethical hacking should report it privately to the client and the service provider instead of exploiting or publicly disclosing it.

* Conclusion:

The ethical hacker may be primarily liable for exceeding the authorized scope, while the client also shares responsibility for the vague contract. Proper scoping, legal documentation, and responsible disclosure would have prevented the legal conflict and ensured ethical and lawful security testing.